

CHAPTER 33.

An Act to amend the enactments relating to the metropolitan police force in regard to the number of assistant commissioners of police, the age of compulsory retirement, membership of the Police Federation and the appointment of constables for a fixed period of service; to adapt to the case of constables so appointed the enactments relating to police pensions and gratuities, National Health Insurance, and Widows', Orphans' and Old Age Contributory Pensions; and for purposes connected with the matters aforesaid. [18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to
appoint
additional
assistant
commis-
sioner.

19 & 20 Vict.
c. 2.

1. It shall be lawful for His Majesty to appoint a fit person to be a fifth assistant commissioner of police for the metropolis, and the Metropolitan Police Act, 1856, shall apply in like manner as if five assistant commissioners of police of the metropolis were therein mentioned instead of two.

Amendment
as to age
for compul-
sory retire-
ment in case
of senior
officers of
metropoli-
tan police
force.

11 & 12 Geo.
5. c. 31.

2.—(1) Subject to the provisions of the next succeeding subsection, the Police Pensions Act, 1921, shall have effect as if after paragraph (3) of section twenty-five of that Act, there were inserted the following paragraph :—

“(3A) Section one of this Act shall have effect as if for the words ‘for superintendents and inspectors, on attaining the age of sixty; for chief constables and assistant chief constables, on attaining the age of sixty-five,’ there were substituted the words ‘for any other members of the force, including the commissioner, assistant

commissioners and deputy assistant commissioners, on attaining such ages, not being less than forty-five, as the Secretary of State may from time to time fix in relation to the several ranks'; and the provisions of the said section as to extension of service in special cases shall apply in relation to the commissioner, assistant commissioners and deputy assistant commissioners as they apply in relation to a chief constable";

and as if in paragraph (4) of the said section the words "the age of compulsory retirement and" were omitted.

(2) This section shall not, without his consent, apply in relation to any member of the metropolitan police force who was serving as such immediately before the commencement of this Act.

3. Part I of the Schedule to the Police Act, 1919, (which relates to the constitution and proceedings of the Police Federation) shall, in its application to the metropolitan police force, have effect as if,—

Amendment
as to con-
stitution
of Police
Federation.

(a) in paragraphs 1 and 2 thereof, for the words "below the rank of superintendent," there were substituted the words "of the ranks of inspector, sergeant and constable"; and

9 & 10 Geo.
5. c. 46.

(b) after paragraph 2 thereof there were inserted the following paragraph:—

"2A. In this Schedule the expression 'inspector' does not include a chief inspector, sub-divisional inspector, station inspector or junior station inspector."

4.—(1) It shall be lawful for the commissioner of police of the metropolis, with the approval of the Secretary of State, to appoint persons to serve as constables in the metropolitan police force for a fixed period of service, not exceeding ten years, subject, at the discretion of the Secretary of State, in any particular case to such prolongation, if any, of the period as may be necessary to enable the constable concerned, for whatever number of years he was appointed, to complete that number of years of approved service.

Appoint-
ment of
constables
for fixed
period of
service in
metro-
politan
police force.

(2) In its application to constables appointed under this section, the Police Pensions Act, 1921, shall have effect, as if—

(i) at the end of subsection (1) of section two of the said Act there were inserted the following paragraph—

“ and (e) if he was appointed as a constable of the metropolitan police force for a fixed period of service, shall, on discharge on completion of the said period of service, be entitled to receive a gratuity ”; and

(ii) at the end of subsection (2) of section nine of the said Act there were inserted the following proviso :—

“ Provided that, in the case of a constable of the metropolitan police force appointed for a fixed period of service, the police authority of the other force which he joins may, if they think fit, allow a part of such service to be so reckoned if he pays, or has paid, to them either the amount of any such gratuity or rateable deductions as aforesaid or, where a gratuity has been granted to him, such part thereof, not being less than the amount of the rateable deductions, as the police authority may determine ”; and

(iii) after subsection (1) of section ten of the said Act there were inserted the following subsection :—

“(1A) For the purposes of the foregoing subsection, service in the metropolitan police force under an appointment for a fixed period of service shall be disregarded, but where any person, after serving in the metropolitan police force under such an appointment as aforesaid, has served, otherwise than under such an appointment, in any capacity mentioned in the said subsection, he shall be entitled to reckon his service in the metropolitan police force for the purpose of pension in such circumstances, and to such extent, as may be prescribed by regulations made by the Treasury or the Secretary of State, as the case may require ”; and

- (iv) in paragraph 5 of Part I of the First Schedule to the said Act, after the words "ten years' approved service", there were inserted the words "or, in the case of a constable of the metropolitan police force appointed for a fixed period of service, on discharge on completion of the said period of service."

(3) In their application to constables appointed under this section, the National Health Insurance Act, 1924, and the Widows', Orphans' and Old Age Contributory Pensions Act, 1925 (in each case as amended by any subsequent enactment) shall have effect subject to the amendments specified in the Schedule to this Act.

14 & 15 Geo.
5. c. 38.
15 & 16 Geo.
5. c. 70.

5. This Act may be cited as the Metropolitan Police Act, 1933. Short title.

SCHEDULE .

Section 4 (3).

AMENDMENTS OF CERTAIN ACTS IN THEIR APPLICATION TO CONSTABLES SERVING IN THE METROPOLITAN POLICE FORCE FOR A FIXED PERIOD OF SERVICE.

1. In the National Health Insurance Act, 1924, after section sixty-four the following section shall be inserted :—

64A. *Provisions as to short service constables of the metropolitan police force.*—Notwithstanding anything in any certificate given under paragraph (b) of Part II of the First Schedule to this Act, a constable of the metropolitan police force who is appointed for a fixed period of service shall be deemed to be employed within the meaning of this Act during his period of service and shall be insured during that period as an employed contributor, and the provisions of this Act shall apply in relation to him subject, however, to the following modifications :—

- (i) the contribution payable in respect of him shall be an employer's contribution at the rate of threepence a week and shall be paid to the Minister out of the metropolitan police fund in respect of

each contribution week, or part of a contribution week, for which he receives pay; and

(ii) he shall not be entitled during his period of service to medical benefit, sickness benefit or disablement benefit; and

(iii) if he is a member of an approved society, there shall be credited to the society a sum equal to sixpence for each weekly contribution paid, and an equal sum shall be treated as having been expended on benefits, and the proper proportion thereof shall accordingly be paid out of moneys provided by Parliament.

2. In the Widows', Orphans' and Old Age Contributory Pensions Act, 1925, the following section shall be inserted after section twenty-four :—

24A. Provisions as to short service constables of the metropolitan police force.—(1) The contribution payable under this Act in respect of a short service constable shall be an employer's contribution at the rate of ninepence a week and shall be paid out of the metropolitan police fund in respect of each contribution week, or part of a contribution week, for which he receives pay.

(2) A widow's pension shall not be payable under this Act to the widow of a short service constable if a pension is payable to her under the Police Pensions Act, 1921, or if under paragraph (d) of section three of that Act she has accepted a gratuity in lieu of a pension, and an additional allowance or orphan's pension shall not be payable under this Act in respect of a child of a short service constable if an allowance or gratuity is payable in respect of that child under the said Act of 1921.

(3) If the total weekly amount of any widow's pension and any additional allowances, or of any orphans' pensions, which but for the provisions of the preceding subsection would have been payable under this Act in right of a short service constable exceeds the total weekly amount of any widow's pension and any children's allowances, or, as the case may be, of any children's allowances, payable in right of him out of the metropolitan police fund, a sum equal to the difference between those amounts shall in respect of each week be paid into that fund out of the pensions account and applied in augmenting the weekly payments made out of that fund :

Provided that this subsection shall not apply in any case where a gratuity in lieu of a pension or in lieu of an allowance has been granted to, or for the benefit of, the widow or any child of the constable.

(4) In this section the expression "short service constable" means a constable of the metropolitan police force who is appointed for a fixed period of service.

CHAPTER 34.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and thirty-four, and to appropriate the Supplies granted in this Session of Parliament.

[28th July 1933.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

GRANT OUT OF CONSOLIDATED FUND.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom, and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March, one thousand nine hundred and thirty-four, the sum of three hundred and fourteen million nine hundred and eleven thousand nine hundred and ninety-four pounds.

Issue of
£314,911,994
out of the
Consoli-
dated Fund.

2.—(1) The Treasury may borrow from any person, by the issue of Treasury Bills or otherwise, and the Bank of England and the Bank of Ireland may advance

Power for
the Trea-
sury to
borrow.